



Loan Agreement

CONTENTS

- 1. The Loan Schedule
- 2. The Agreement Terms and Conditions
- 3. Business Purpose Declaration

①

LOAN SCHEDULE

1.	Date of Execution:	03/12/2020
2.	Lender:	Name: Lumi Finance Pty. Limited ACN: 627 897 625 Registered office: Level 26, 181 William Street, Melbourne Victoria 3000
3.	Borrower:	Name: Richard Wiliam McLean ACN: 72066207615 Registered office: 2 McCubbin Street Footscray, 3011, VIC
4.	Loan Amount:	\$10,000
5.	Scheduled Repayments and Additional Costs:	Refer to Table 1
6.	Direct Debit Account:	Account Name: Pay goes here & bills from BSB: 633000 Account Number: 142409507 Bank: Bendigo Bank
7.	Guarantor(s):	
8.	Borrower Security:	If an Event of Default occurs, the Borrower grants the Lender a Security Interest in its Property under the terms set out in clause 5.

9. Special Covenants:		
10.	Use of Funds:	The Borrower shall use the loan funds only for the purposes disclosed to the Lender, being wholly or predominantly to cash flow, buy equipment

LOAN SUMMARY

The Borrower will repay the Loan Amount, together with interest on the Loan Amount, by paying the Scheduled Repayments set out in Table 1 below.
The Scheduled Repayments that are payable in accordance with Table 1 and clause 4 of this Agreement have been calculated on the following basis:

Loan Amount:	\$10,000
Establishment fee:	\$250
Total available loan amount*:	\$9,750
Repayment:	\$234.62
Repayment Frequency:	WEEKLY
Number of repayments:	52
Direct debit fee:	\$0
Total repayment amount:	\$12,199.93

First direct debit of a Scheduled Repayment to commence the week following the advance of the Loan Amount.
* Establishment fee will be deducted from the Loan Amount

TABLE 1

SCHEDULED REPAYMENTS

Scheduled Repayment Date	Scheduled Repayment Amount	Outstanding Repayment Amount
2020-12-10	\$234.62	\$11,965.31
2020-12-17	\$234.62	\$11,730.69
2020-12-24	\$234.62	\$11,496.07
2020-12-31	\$234.62	\$11,261.45
2021-01-07	\$234.62	\$11,026.83
2021-01-14	\$234.62	\$10,792.21
2021-01-21	\$234.62	\$10,557.59
2021-01-28	\$234.62	\$10,322.97
2021-02-04	\$234.62	\$10,088.35
2021-02-11	\$234.62	\$9,853.73

2021-02-18	\$234.62	\$9,619.11
2021-02-25	\$234.62	\$9,384.49
2021-03-04	\$234.62	\$9,149.87
2021-03-11	\$234.62	\$8,915.25
2021-03-18	\$234.62	\$8,680.63
2021-03-25	\$234.62	\$8,446.01
2021-04-01	\$234.62	\$8,211.39
2021-04-08	\$234.62	\$7,976.77
2021-04-15	\$234.62	\$7,742.15
2021-04-22	\$234.62	\$7,507.53
2021-04-29	\$234.62	\$7,272.91
2021-05-06	\$234.62	\$7,038.29
2021-05-13	\$234.62	\$6,803.67
2021-05-20	\$234.62	\$6,569.05
2021-05-27	\$234.62	\$6,334.43
2021-06-03	\$234.62	\$6,099.81
2021-06-10	\$234.62	\$5,865.19
2021-06-17	\$234.62	\$5,630.57
2021-06-24	\$234.62	\$5,395.95
2021-07-01	\$234.62	\$5,161.33
2021-07-08	\$234.62	\$4,926.71
2021-07-15	\$234.62	\$4,692.09
2021-07-22	\$234.62	\$4,457.47
2021-07-29	\$234.62	\$4,222.85
2021-08-05	\$234.62	\$3,988.23
2021-08-12	\$234.62	\$3,753.61
2021-08-19	\$234.62	\$3,518.99
2021-08-26	\$234.62	\$3,284.37
2021-09-02	\$234.62	\$3,049.75
2021-09-09	\$234.62	\$2,815.13
2021-09-16	\$234.62	\$2,580.51
2021-09-23	\$234.62	\$2,345.89
2021-09-30	\$234.62	\$2,111.27
2021-10-07	\$234.62	\$1,876.65
2021-10-14	\$234.62	\$1,642.03
2021-10-21	\$234.62	\$1,407.41
2021-10-28	\$234.62	\$1,172.79
2021-11-04	\$234.62	\$938.17
2021-11-11	\$234.62	\$703.55
2021-11-18	\$234.62	\$468.93
2021-11-25	\$234.62	\$234.31
2021-12-02	\$234.31	\$0

ADDITIONAL COSTS THAT MAY APPLY

Demand Letter Fee	\$250
Failed Direct Debit Fee	\$25**
Late payment Fee	\$50

Other costs and expenses that become payable under the provisions of this Agreement, including under clause 9.
** There may be additional charges applied by your Bank or Financial Institution

2

THE AGREEMENT TERMS AND CONDITIONS

This Agreement is made between the Lender and the Borrower.

RECITALS

- A. The Lender has agreed to advance to the Borrower the Loan Amount on the terms and conditions of this Agreement.

THE PARTIES AGREE AND COVENANT as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. DEFINITIONS

In this Agreement, unless the context otherwise requires:

Additional Costs has the meaning given to it in item 5 and Table 1 of the Loan Schedule

Agreement means this document, including the Loan Schedule and Table 1.

Borrower means each of the persons and entities specified at item 3 of the Loan Schedule.

Business Day means a day on which banks are open for general banking business in New South Wales excluding Saturdays, Sundays and public holidays.

Change of Control means that:

- a. a person or entity that Controls a body corporate ceases to Control that body corporate. or
- b. a person or entity that does not Control a body corporate comes to Control that body corporate.

Control has the meaning given to it by section 50AA of the Corporations Act.

Controller means in relation to a person’s property, a receiver or receiver and manager of that property or anyone else who (whether or not as agent for the person) is in possession, or has Control of that property to enforce a Security Interest.

Corporations Act means the *Corporations Act 2001* (Cth).

Date of Execution means the date specified at item 1 of the Loan Schedule.

Direct Debit Account means the account described at item 6 of the Loan Schedule.

Direct Debit Agent means the party appointed by the Lender to direct debit funds from the Borrower’s Direct Debit Account on or after the Scheduled Repayment Dates.

Direct Debit Authority means an authority from the Borrower authorising the Lender (and/or any Direct Debit Agent) to deduct or arrange for the deduction of money from the Direct Debit Account in payment of any amount payable to the Lender under this Agreement.

Early Repayment Date has the meaning given to that expression in clause 4.6.

Event of Default has the meaning given to that expression in clause 7.1.

External Administrator means an administrator, Controller or managing controller (as defined in the Corporations Act), Receiver, trustee (including a trustee for creditors or a trustee in bankruptcy), provisional liquidator or liquidator.

GST has the meaning in the *A New Tax System (Goods and Services Tax) Act* 1999 (Cth).

Guarantee means a guarantee given by one or more persons in favour of the Lender and in respects of the obligations of the Borrower under this Agreement

Guarantor(s) means each of the persons and entities specified at item 7 of the Loan Schedule, if any.

Insolvency Event means the occurrence of any of the following in relation to any person:

- a. the person is, insolvent or an insolvent under administration (each as defined in the Corporations Act) or is presumed to be insolvent under an applicable law;
- b. in the case of a person that is not a body corporate:
 - i. the death, mental incapacity or bankruptcy of the person (including the occurrence of any “act of bankruptcy” as defined under section 40 of the Bankruptcy Act 1966 (Cth) with respect to that person); or
 - ii. such person has a Security granted by them enforced against them;
- c. it is subject of a Liquidation;
- d. an External Administrator is appointed to it or any of its assets or a step is taken to do so;
- e. an application or order is made, resolution passed, proposal put forward, or any other action taken which is preparatory to result in any of (a) (b) (c) (d) above;
- f. it stops or suspends payment of its debts or is otherwise unable to pay its debts when they fall due; or
- g. if a trustee of a Trust, the liabilities incurred by the trustee for which it has a right to be indemnified from the assets of the Trust exceed the value of the assets of the Trust.

Lender means the entity specified at item 2 of the Loan Schedule.

Liquidation means:

- a. a winding up, dissolution, liquidation provisional liquidation, administration, bankruptcy or other proceeding for which an External Administrator is appointed; or,
- b. an arrangement, moratorium, composition, reorganisation or reconstruction with involving or for the benefit of any creditors.

Loan Amount means the amount specified in item 4 of the Loan Schedule and will include any additional loan amounts that are advanced to the Borrower by the Lender under this Agreement and at the request of the Borrower.

Loan Facility means the loan facility made available to the Borrower under this Agreement.

Loss means a loss, claim, action, damage, liability, cost charge, expense, penalty or compensation suffered, paid or incurred.

Material Adverse Effect means an event or circumstance that can be reasonably expected to prevent the Borrower from continuing to meet or perform its financial obligations under this Agreement;

Outstanding Balance means the amount that is or remains payable to the Lender by the Borrower from time to time under this Agreement (whether or not the amount, or any of it, is then due for payment).

Parties mean each party to this Agreement.

Penalty Interest Rate means a rate of interest that is applied at 1% per day.

Permitted Security Interest means:

- a. each Security;
- b. a Security Interest consented to by the Lender in writing;
- c. a Security Interest arising under clause 5;
- d. a Security Interest provided for by a transfer of an account or chattel paper, a commercial consignment or a PPS lease if the transaction does not secure payment or performance of any obligation.

PPS Act means the *Personal Property Securities Act* 2009 (Cth).

PPS Law means:

- a. the PPS Act and any regulation made at any time under the PPS Act (each as amended from time to time);
- b. any provision of the PPS Act or regulation made at any time under the PPS (each as amended from time to time); and
- c. any amendment made at any time to any other legislation as a consequence of a PPS Law.

Power means any right, power, authority, discretion, opinion or remedy of the Lender under this Agreement or law.

PPSR means the Personal Property Securities Register.

Property means all the Borrower's present and after-acquired property. It includes:

- a. anything in respect of which the Borrower has at any time a sufficient right, interest or power to grant a Security Interest in the Property; and
- b. if the Borrower is also entering into this Agreement in its capacity as trustee of a Trust, the Trust Property of that Trust.

Receiver means a receiver or receiver and manager appointed under a Security.

Scheduled Repayments means the repayment amounts set out at item 5 and in Table 1 of the Loan Schedule (subject to any subsequent amendment under clause 4).

Scheduled Repayment Date means a date for the making of a Scheduled Repayment (as set out in Table 1 of the Loan Schedule)

Security means each Guarantee and other security provided, or to be provided, by any person to secure the Borrower's obligations under this Agreement, and includes a security or Security Interest arising under clause 5 of this Agreement where such security or Security Interest has arisen under clause 5.

Security Interest means:

- a. any security interest as defined in the PPS Law;
- b. any mortgage or lien, hypothecation, charge (whether fixed or floating) bill of sale, caveat, pledge, claim, trust arrangement,

preferential right, right of set-off, title retention or other form of security interest; and

- c. any agreement to grant or create any of the above or to allow any of them to exist.

Security Provider means any entity or person that has granted a Security.

Special Covenants means the Special Covenants, if any, that are set out at item 9 of the Loan Schedule.

Tax means any tax, levy, impost, duty, rate, charge, deduction, compulsory loan or withholding of whatever kind (together with any related interest, penalty, fine or expense) that is imposed, levied or assessed by law or any government agency. It GST, stamp duty and transaction taxes and duties.

Trust means any trust to which a Party to this Agreement is a trustee, whether or not the existence of that trust has been disclosed to, or is known to, the Lender.

Trust Deed means in relation to a Trust the document related to the establishment of that Trust and all other constituent documents of that Trust (if any).

Trust Default means each event or circumstances specified in clause 7.2.

Trust Property means for a Trust all the present and future undertaking, assets and rights (whether present or future and of whatever kind and wherever situated) which are the subject of that Trust.

Use of Funds has the meaning given to it at item 10 of the Loan Schedule.

1.2. INTERPRETATION

In this Agreement, unless the contrary intention appears:

- a. headings are for ease of reference only and do not affect the meaning of this Agreement;
- b. the recitals form part of this Agreement.
- c. the singular includes the plural and vice versa and words importing gender include other genders;
- d. other grammatical forms of defined words or expressions have corresponding meanings;
- e. a reference to a clause, paragraph, schedule or annexure is a reference to a clause or paragraph or schedule or table or annexure to this Agreement;
- f. a reference to “A\$”, “\$A”, “dollar” or “\$” is a reference to Australian currency;
- g. a reference to a specific time for the performance of an obligation is a reference to that time in the State, Territory or other place where that obligation is to be performed;
- h. a reference to a party includes its executors, administrators, successors and permitted assigns;
- i. a reference to a document or agreement, including this Agreement, includes a reference to that document or agreement as novated, altered or replaced from time to time;
- j. words and expressions importing natural persons include partnerships, bodies corporate, associations (whether incorporated or not), government and governmental, semi-governmental and local authorities or agencies;
- k. a reference to any legislation or statutory instrument or regulation is construed in accordance with the *Acts Interpretation Act* 1901 (Cth) or the equivalent State legislation, as applicable;
- l. words and expression defined in the Corporations Act as at the date of this Agreement have the meanings given to them in the Corporations Act at that date;

- m. a reference to writing includes typewriting, printing, lithography, photography and any other method of representing or reproducing words, figures or symbols in a permanent and visible form;
- n. where the terms are used in the context of the PPS Act they have the meanings they have in the PPS Act.
- o. if a Party to this Agreement is a trustee of a Trust it enters into, and is bound by this Agreement in its own capacity and as trustee of the Trust.

2. LOAN

- 2.1. The Lender will lend the Loan Amount to the Borrower, subject to the terms of this Agreement.
- 2.2. The Lender shall not advance the Loan Amount or any part of it unless and until the Borrower has first delivered to the Lender, in a form and substance satisfactory to the Lender, this Agreement and each and every Security duly signed and delivered by the Security Provider and such other person as may be required to perfect the Security and, if required by the Lender, evidence of stamping and registration.
- 2.3. The Lender may require the Borrower to sign or consent to a Disbursement Authority before the Lender advances any part of the Loan Amount.

3. USE OF FUNDS

- 3.1. The Borrower warrants, undertakes and confirms to the Lender that the Loan Amount will be used strictly for the purposes as particularly described in the Use of Loan. The Borrower warrants that the Loan Amount will not be used for any purpose other than for business purposes.

4. REPAYMENT

- 4.1. Subject to the provisions of this clause 4, the Borrower will pay to the Lender the Scheduled Repayments in accordance with item 5 and Table 1 of the Loan Schedule, together with such other amounts as become payable under this Agreement by the Borrower.
- 4.2. Where, at the request of the Borrower, any additional amounts are advanced under this Agreement so as to increase the Loan Amount, or where the Outstanding Balance is increased on account of any cost, fee or charge becoming payable by the Borrower under this Agreement (and being added to the Outstanding Balance), the amount of the remaining Scheduled Repayments may be adjusted or increased by the Lender and the amount of the changed Scheduled Repayments will be notified to the Borrower by a notice given in accordance with clause 17. The purpose of any such adjustment or increase to the remaining Scheduled Repayments will be to seek to ensure the full repayment of the Outstanding Balance following the payment of the last Scheduled Repayment on the final repayment date set out in Table 1.
- 4.3. Other than the Scheduled Repayments, all other payments of money required to be made under this Agreement shall, unless otherwise expressly provided for in this Agreement, be payable upon demand.
- 4.4. Where the Lender holds a Direct Debit Authority from the Borrower, the Lender (or the Lender's Direct Debit Agent) will debit the Borrower's Direct Debit Account for the amounts then owing by the Borrower, by arranging to debit the Borrower's Direct Debit Account on or after the Scheduled Repayment Date for the Scheduled Repayments.
- 4.5. In the event that there are insufficient funds in the Borrower's Direct Debit Account on the scheduled repayment date and/or the Lender (or the Direct Debit Agent) is otherwise unsuccessful in obtaining a Scheduled Repayment

or other amount then owing on the schedule repayment date (whether due to the cancellation of the Borrower's Direct Debit Authority or otherwise);

- a. the Borrower shall be in default for the purposes of Clause 7; and
- b. Additional Costs will be payable.

4.6. Each of the 26th and 39th Scheduled Repayment Date is an Early Repayment Date.

4.7. Within the period that commences 14 days prior to an Early Repayment Date and ends two clear Business Days prior to that Early Repayment Date, the Borrower may request a statement of the amount of the loan principal that is expected to be outstanding at the end of that Early Repayment Date, after payment of the Scheduled Repayment that is due on that date. Where the Lender receives such a request from the Borrower under this clause 4.7, the Lender will tell the Borrower the amount of the loan principal that is expected to be outstanding at the end of the applicable Early Repayment Date, after payment of the Scheduled Repayment that is due on that date.

4.8. Where the Borrower pays the Lender the whole of the amount of the loan principal that is outstanding at the end of an applicable Early Repayment Date, and where the Borrower has paid all of the Scheduled Repayments that have become due and payable up to and including on the applicable Early Repayment Date, the Borrower will no longer be required to make any further Scheduled Repayments.

4.9. Where:

- a. the Borrower has paid all of the Scheduled Repayments that have become due and payable up to and including an applicable Early Repayment Date; and
- b. the Borrower pays the Lender an additional amount in reduction of the amount of the loan principal that is outstanding at the end of that applicable Early Repayment Date and does so on that Early Repayment Date; and
- c. the additional amount paid on the Early Repayment Date is not sufficient to repay the whole of the outstanding loan principal calculated at the end of the Early Repayment Date; and
- d. the additional amount paid in reduction of the amount of the loan principal that is outstanding at the end of an applicable Early Repayment Date is not less than \$5000,

the Lender will recalculate the amount of the remaining Scheduled Repayments that are due over the balance of the loan term, using the same assumptions as to loan term and as to the inherent interest rate as applied to the calculation of the original Scheduled Repayments. The Lender will advise the Borrower of the revised amounts of the Schedule Repayments before the next Scheduled Repayment date.

4.10. In the event that the Borrower fails to pay the full amount of a Scheduled Repayment on or before the due date for payment, and in the event that the amount of the Scheduled Repayment, or any part of that amount remains outstanding for more than seven (7) days, the unpaid part of the Scheduled Repayment will become liable to the application of interest calculated at the Penalty Interest Rate until it is repaid. Any such penalty interest will be calculated on a daily basis on the amount of the unpaid Scheduled Repayment from the date it became due for payment.

4.11. Money received by the Lender from Borrower in connection with this Agreement may be applied towards the amounts owing by the Borrower in the order and in the amounts that are at the Lender's discretion.

5. SECURITY

5.1. If an Event of Default occurs, the Borrower acknowledges and agrees that it

will be deemed on the date of that Event of Default to have granted a Security Interest in its Property to the Lender as security for the performance of its obligations under this Agreement. The Security Interest, when it arises, will be a charge.

- 5.2. The lender may at its own discretion register a Security Interest (including one arising under clause 5.1) with anybody that shall operate a registry for the registration of such Security or Security Interest as at the date of registration. Without limiting this clause 5.2, the Borrower hereby consents to the Lender at any time after an Event of Default:
 - a. lodging and registering any financing statement on the PPSR; and
 - b. lodging and registering a caveat over any real property owned by the Borrower to recognise the Lender's Security Interest in such property.
- 5.3. The Borrower and the Lender may by mutual agreement from time to time, and with the consent of any Guarantor, vary a Security by:
 - a. releasing all or any of the Security in whole or in part;
 - b. taking of further Security; and/or
 - c. varying any of the terms and conditions of this Agreement as may be agreed upon by the Parties.

6. REPRESENTATIONS, COVENANTS AND WARRANTIES

- 6.1. The Borrower represents and warrants to and for the benefit of the Lender that:
 - a. it has power to enter into and observe its obligations under this Agreement and each and every Security to which it is a party;
 - b. it has in full force and effect all the authorisations necessary to enter into this Agreement and each and every Security to which it is a party, observe its obligations under them and to allow them to be enforced;
 - c. its obligations under this Agreement and each and every Security to which it is a party are valid and binding and are enforceable against it in accordance with their terms, this Agreement and each and every Security to which it is a party and the transactions under them do not contravene its constituent documents or any law, regulations or official directive or any of its obligations or undertakings to which any of its assets are bound or cause a limitation on its powers or the powers of its directors (if a corporation) to be exceeded;
 - d. no Insolvency Event has occurred in relation to it;
 - e. no Event of Default subsists;
 - f. during the term of this Agreement, the borrower will not enter into a separate loan or loan facility with another lender or financier without the consent of the Lender (which consent must not be unreasonably withheld);
 - g. the Borrower will advise the Lender of any Material Adverse Effect affecting the Borrower which occur at any time prior to the date of final payment;
 - h. no litigation, arbitration proceedings, event or action are pending or threatened against the Borrower which would, if adversely determined, adversely affect the financial condition of the Borrower and/or jeopardise the Borrower's obligations under this Agreement;
 - i. the Borrower and its director(s) are of the belief that the Borrower is of sound financial position at the date of entering this Agreement, and are of the belief that the Borrower will meet its obligations under this Agreement.
 - j. the Borrower and its director(s) are not aware of any information, event, or action that would result in an adverse change to the financial performance of the Borrower;

- k. it has had an opportunity of taking independent legal and financial advice from either the Borrower's own legal adviser and/or accountant with respect to this Agreement, the Security to which it is a party and the Borrower confirms and agrees that it does not execute this Agreement, or the Security to which it is a party as a result of or by reason of any promise, representation, statement or information of any kind or nature given or offered to the Borrower by or on behalf of the Lender, the Lender's legal advisers or any other person, other than as expressly set out in this Agreement.

7. EVENT OF DEFAULT

7.1. It is an Event of Default if:

- a. all or part of the Loan Amount is used by the Borrower for a purpose which is in conflict with the Borrower's warranties in clause 3 or clause 16 this Agreement;
- b. the Borrower fails to pay any amount payable under this Agreement on time and in the manner required and if that default continues for more than 7 Business Days after a notice of default has been given to the Borrower;
- c. a Party fails to comply with any undertaking, obligation or agreement expressed or implied in, or given in relation to, this Agreement and if the failure is capable of remedy, it continues unremedied for more than 7 Business Days after a notice of the failure has been given to that Party;
- d. a representation or warranty made by or for the Borrower under or in connection with this Agreement is untrue, incorrect or misleading when made where the making of the representation or warranty was material to the decision of the Lender to enter into this Agreement, such that had the Lender known the truth of the matter, it would not have entered into this Agreement, or would not have done so without further enquiry;
- e. an Insolvency Event occurs in relation to the Borrower;
- f. any default, or event of default, by the Borrower (however described), occurs under any other agreement with the Lender that in the reasonable opinion of the Lender will have a Material Adverse Effect that is relevant to the Borrower;
- g. a Security Interest is enforced or becomes enforceable against any assets of the Borrower;
- h. there are insufficient funds in the Borrower's Direct Debit Account on two successive Scheduled Repayment Dates and/or the Direct Debit Agent is otherwise unsuccessful in obtaining a Scheduled Repayment Amount on the two successive Schedule Repayment Dates (whether due to the cancellation of the Borrower's direct debit or otherwise);
- i. a Security ceases for any reason to have the priority ranking the Lender intended it to have or a claim to that effect is made, except where it is solely due to the perfection in accordance with the PPS Law of any purchase money security interest which is a Permitted Security Interest;
- j. the Borrower enters into a new loan contract or loan facility with another lender or financier without the consent of the Lender (where such consent has not been unreasonably withheld by the Lender);
- k. a Trust Default occurs; or
- l. any other event or series of events, whether related or not, occurs which, in the Lender's reasonable opinion, has had, or can be expected to have, a Material Adverse Effect.

- 7.2. It is a Trust Default if:
- a. a new or additional trustee of the Trust is appointed;
 - b. the Borrower ceases to be the trustee of its Trust;
 - c. the Trust is wound up or terminated; or
 - d. a material change to a Trust Deed is made without the Lender's prior consent.

8. CONSEQUENCES OF DEFAULT

- 8.1. At any time on or after the occurrence of an Event of Default the Lender may, in the manner and at the times in its absolute discretion it deems appropriate but without any obligation to do so:
- a. demand and require immediate repayment of the whole of the Outstanding Balance and recover the same from the Borrower notwithstanding that the date for repayment thereof had not arrived;
 - b. exercise any powers rights or privileges conferred by law, this Agreement, the Security and/or any other collateral document or securities, including registration of the Security;
 - c. perform any one or more of the Borrower's obligations under this Agreement; and/or
 - d. apply any moneys received by the Lender in exercising its rights under this Agreement or for any other reason in and towards full or partial payment of any part the Outstanding Balance that is then due and payable.
- 8.2. The Lender may exercise its rights under this clause notwithstanding any omission neglect delay or waiver of the right to exercise such option and without liability for Loss.

9. COSTS & EXPENSES

- 9.1. The Borrower will upon the Lender's demand pay to the Lender or as directed by the Lender all reasonable costs, expenses and other amounts payable incurred or paid by the Lender in respect of this Agreement and/or a Security. These costs shall include:
- a. costs (including legal costs on a solicitor own client basis) resulting from or on account of any default by the Borrower or any Event of Default;
 - b. the cost of obtaining any advice reasonably required by the Lender from time to time in consequence of the Borrower being the subject of an Event of Default under this Agreement;
 - c. the reasonable costs of the Lender registering or causing to be registered any Security (or a copy thereof) or Security Interest with such government body or registrar as the Lender reasonably requires;
 - d. reasonable costs resulting from the exercise or attempted exercise of any of the Lender's rights or powers under this Agreement and/or the Security; and
 - e. any stamp duty, loan duty or other duty or financial impost (including duties and taxes on receipts or payments) and any fines or penalties arising directly or indirectly in respect of the Security or any transaction contemplated thereby.
- 9.2. The amounts set out in this Agreement have been calculated without regard to GST. In the event that the Lender must pay GST on a supply made by it to the Borrower in connection with this Agreement, the Lender may, in addition to an amount or consideration payable under this Agreement, recover from the recipient an additional amount on account of GST.

10. ATTORNEY

10.1. Appointment of Attorney

The Borrower irrevocably appoints the Lender its attorney with the right:

- a. at any time to:
 - i. do everything which in the attorney's reasonable opinion is necessary or expedient to enable the exercise of any right of the Lender in relation to this Agreement and any Security;
 - ii. complete this Agreement and any Security provided by the Borrower; and
 - iii. appoint substitutes and otherwise delegate its powers (including this power of delegation); and
- b. after any Event of Default has occurred to do everything that the Borrower may lawfully authorise an agent to do in relation to this Agreement and under any Security.

10.2. **General**

- a. An attorney must not do anything contemplated by this clause 10 if the doing of that thing involves an actual or potential conflict of interest between the personal interests of the attorney and the interests of the Borrower. For the avoidance of doubt, the attorney may do anything contemplated by this clause 10 where it involves an actual or potential conflict of interest between the interests of the Lender and the interests of the Borrower.
- b. This power of attorney is granted to secure compliance by the Borrower with its obligations to the Lender under this Agreement and the Security and any proprietary interest of the Lender under any Security;
- c. The Borrower indemnifies and will keep indemnified any attorney against any liability, loss, cost, expense or damage arising from the lawful exercise of any right by the attorney under this power of attorney; and
- d. This power of attorney is granted for valuable consideration (the receipt of which is hereby acknowledged), as and by way of security for the payment of the Outstanding Balance, the Borrower's obligations under this Agreement and any Security and is deemed irrevocable.

10.3. **Trust**

While an Event of Default subsists, the Borrower must exercise its rights of indemnity against the Trust Property on demand by the Lender.

11. **GENERAL INDEMNITY OF BORROWER**

11.1. **General indemnity**

The Borrower indemnifies the Lender against, and must pay to the Lender on demand amounts equal to, any Loss (including reasonable legal costs and expenses and professional consultant's fees) which the Lender, suffers, incurs, or is liable for, as a result of or in connection with:

- a. the Loan Facility not being drawn down by, or able to be made available to, the Borrower because of some action or inaction of the Borrower or a Security provider;
- b. all or part of the Outstanding Balance becoming payable before it would otherwise have been expected to be due for payment;
- c. any payment required under this Agreement not being made on its due date;
- d. an Event of Default or the exercise or attempted exercise of any Power;
- e. an indemnity that is reasonably given by the Lender to an External Administrator of the Borrower;

- f. the Lender relying on information provided or approved by the Borrower in connection with this Agreement; or
- g. the Lender acting or relying in good faith on any notice or other communication from, or reasonably believed to be from the Borrower.

The Borrower will not be required to indemnify the Lender for any amount of Loss that is caused by the Lender's breach of this Agreement or by the Lender's fraud, negligence or willful misconduct.

11.2. **Indemnities and reimbursement obligations**

Any indemnity or reimbursement obligation of the Borrower:

- a. is a separate, irrevocable, unconditional and continuing obligation, independent of that party's other obligations under this Agreement; and
- b. survives the termination of this Agreement.

12. NO SET-OFF

12.1. All payments by the Borrower under this Agreement shall:

- a. be paid at such place and to such person as notified in writing by the Lender to the Borrower, and in the absence of such notification to the Lender at the address of the Lender specified in this Agreement; and
- b. be paid free of any deduction or set-off whatsoever.

12.2. A receipt of the Lender, or by any manager, acting manager, solicitor, clerk or any other person acting on behalf of the Lender, for any money paid under a Security shall be a sufficient discharge of the obligation to pay such money.

13. NO WAIVER

13.1. Notwithstanding any provision contained in this Agreement or any rule of law or equity to the contrary, the granting of any time or any other indulgence by the Lender to the Borrower, a Security Provider or a Guarantor in relation to any existing or future default under any Security or this Agreement shall not be deemed a sanction or waiver of any continuing or recurring breach nor shall the Lender's right to exercise its rights under the Security or this Agreement at any subsequent time be effected or diminished by the grant of time or any other indulgence.

14. TRUST PROVISIONS

14.1. Where the Borrower has executed this Agreement in its capacity as trustee of a Trust whether or not the fact that the Borrower is a trustee is disclosed to the Lender, the Borrower acknowledges that this Agreement is binding on the Borrower personally and in its capacity as a trustee of a Trust and the Lender's right of recourse extends to both the assets of the Borrower personally and the Trust Property.

14.2. If the Borrower enters this Agreement as trustee of any trust or the Borrower is granting security over any property which is held upon trust or subject to any trusts the following covenants shall have effect (whether or not the Lender has notice of the trust or trusts):

- a. the Borrower hereby covenants and agrees with the Lender that:
 - i. the Borrower has full, complete and valid authority pursuant to the Trust to enter into this Agreement;
 - ii. The Borrower has full complete and valid authority pursuant to the Trust to grant Security over all Trust Property to which the Securities extend (where the Borrower is a provider of the Security);

- iii. the Borrower is entering into this Agreement and the transactions evidenced hereby as part of the due and proper administration of the Trust and for the benefit of all of the beneficiaries or unit holders of the Trust;
 - iv. no beneficiary or unit holder is presently entitled to any of the trust assets;
 - v. the Borrower shall be personally liable for the performance of all covenants in this Agreement;
- b. the Borrower has not and will not commit any breach of the terms and conditions of the Trust.
- c. the Borrower will not:
 - i. resign or be removed as a trustee of the Trust, or do anything which would permit it to be removed as trustee of the Trust.
 - ii. allow the appointment of a new or additional trustee of the Trust.
 - iii. add, vary or delete any term of the Trust deed.
 - iv. do anything or permit anything to be done which would restrict or impair its ability to comply with its obligations under this Agreement.
- d. the Borrower will, at the Lender's request, exercise its right of indemnity from the Trust Property to comply with its obligations under this Agreement.

15. SPECIAL COVENANTS AND CONDITIONS

- 15.1. The special covenants and conditions (if any) contained in item 9 of the Loan Schedule form part of this Agreement.

16. CONSUMER CREDIT LEGISLATION

- 16.1. The Borrower warrants that the finance to be provided under the Loan Facility, including the Loan Amount, is not intended for personal, domestic or household use, or for the use in connection with residential property.

17. NOTICES AND CONSENTS

- 17.1. Any notice, consent or demand given in relation to this Agreement shall be in writing in order to be valid and shall be deemed to have been duly served if it is:
 - a. if hand delivered, on delivery;
 - b. if transmitted by email, on transmission;
 - c. if posted by pre-paid post to the address specified in the Loan Schedule hereto for the relevant party, on the seventh Business Day after posting;
 - d. if sent by facsimile to the facsimile number specified in the Loan Schedule hereto for the relevant party, at the time recorded on the transmission report indicating successful transmission of the entire notice.
- 17.2. Any notice, consent or demand given by the Lender may be given or made in writing signed by an officer of or solicitor for the Lender.
- 17.3. The Borrower or the Lender may from time to time by notice in writing given in accordance with this Agreement nominate a new address and/or facsimile number or email address for the purposes of this clause, and such new address or facsimile or email notice shall apply from the date of service of such notice.

18. ASSIGNMENT

- a. The Lender may assign or transfer its rights under this Agreement without the Borrower's consent.
- b. The Borrower consents to the Lender novating its obligations under this Agreement in connection with the sale or transfer of the Lender's business.
- c. The Borrower may not assign or transfer its rights under this Agreement without the Lender's consent.

19. GENERAL

19.1. **Governing Law**

This Agreement is governed by the laws applicable in the State of New South Wales, Australia.

19.2. **Jurisdiction**

Each party submits to the non-exclusive jurisdiction of the courts of the State of New South Wales, Australia.

19.3. **Confidential information**

The Borrower agrees that the Lender may disclose any information provided to, or discovered or determined by the Lender or its lawyers (including in relation to any Party) that is not publicly available in any manner and to any person that the Lender considers appropriate.

19.4. **Performance of obligations**

Time is of the essence in this Agreement in respect of an obligation of the Borrower to pay money.

19.5. **Consents and waivers**

A consent or waiver by the Lender in connection with this Agreement is effective only in writing. The Borrower must comply with all conditions in any consent given.

19.6. **Certificates**

The Lender may give the Borrower a certificate in writing signed by an officer of or solicitor for the Lender certifying the amount payable by the Borrower and such certificate shall be prima facie evidence of the matters stated therein.

19.7. **Inconsistent law**

To the extent permitted by law, this Agreement prevails to the extent it is inconsistent with any law.

19.8. **Electronic communication**

The words in this Agreement that are defined in the *Electronic Transactions Act 1999* (Cth) have the same meaning. The Parties acknowledge and agree that this Agreement may be executed and made binding by way of electronic communication.

19.9. **Severability**

- a. If reading down a provision of this Agreement would prevent the provision or this Agreement being invalid or voidable it shall be read down to the extent that it is necessary and capable of being read down.
- b. Where, notwithstanding the above, a provision of this Agreement is still invalid or voidable:-
 - i. if the provision would not be invalid or voidable if a word or words were omitted, that word or those words shall be deleted; and
 - ii. in any other case, the whole provision shall be deleted; and the remainder of this Agreement shall continue to have full force and effect.

19.10. **Variation**

A variation of any term of this Agreement must be in writing and signed by the Parties.

19.11. **Counterparts**

This Agreement may be executed in any number of counterparts. Each counterpart constitutes of an original of that document, all of which together constitute one instrument. A Party who has executed a counterpart of this Agreement may exchange it with another Party by emailing or faxing the executed copy of it to that other Party and, if requested by that other party, will promptly deliver the original by hand or post. Failure to make that delivery will not affect the validity of that document.

EXECUTED as an AGREEMENT

By signing below, the Borrower agrees to be bound by the terms of this Agreement and certifies that:

- 1. The representations and the warranties by the Borrower in this Agreement are correct and not misleading; and
- 2. No Event of Default exists or would result from the provision of the Loan Facility to the Borrower.

EXECUTION BY THE LENDER

EXECUTED on **03/12/2020** by **Lumi FINANCE PTY. LIMITED ACN 627 897 625 pursuant to section 127 of the Corporations Act**

DIRECTOR

Yanir Yakutiel

DIRECTOR

Dean Kavanagh

EXECUTION FOR AND ON BEHALF OF THE BORROWER

EXECUTED on **03/12/2020** by Richard Wiliam McLean

FULL NAME OF AUTHORISED AGENT

Richard Mclean

POSITION HELD

DIRECTOR

SIGNATURE

DocuSigned by:

Richard Mclean

1B98F730D72A410...

③

BUSINESS PURPOSE DECLARATION

I/We declare that the credit to be provided to me/us by Lumi Finance Pty Ltd. is to be applied wholly or predominantly for,

- business purposes, or
- investment purposes other than investment residential property.

IMPORTANT

You should **only** sign this declaration if this loan is wholly or predominantly for:

- business purposes, or
- investment purposes other than investment in residential property.

By signing this declaration you may **lose** your protection under the National Credit Code.

DATE

03/12/2020

CAPACITY OF BORROWER Eg. Director

DIRECTOR

NAME OF BORROWER

Richard Wiliam McLean

SIGNATURE

DocuSigned by:
Richard McLean
1B98F730D72A410...